

the opt out period. The court confirms the final approval hearing on April 30, 2026. The court will again review and consider the terms of the settlement at the final approval hearing.

MARK CHANCE v. LUSBIN EFRAN RODRIGUEZ and CARLA JO SOLICH
Case No. CU24-08769

SOLICH's Motion for Summary Judgment

TENTATIVE RULING

Defendant CARLA JO SOLICH ("SOLICH") moves for summary judgment against Plaintiff MARK CHANCE's complaint alleging negligence. Plaintiff's complaint alleges that SOLICH is at fault for a motor vehicle collision on I-80 on February 5, 2023 that injured Plaintiff.

Timeliness of Opposition. Opposition to a motion for summary judgment is due twenty days before the hearing; October 10, 2025 in this case. (Code Civ. Proc., § 437c, subd. (b)(2).) Plaintiff filed his opposition on October 13, 2025. Additionally, Plaintiff's opposition documents do not attach evidentiary exhibits mentioned in declarations. In light of the continuance of this motion by the court, the court exercises its discretion to consider the untimely opposition, but does not consider references to inadmissible evidence. (See discussion *infra*.)

Requests for Judicial Notice. Matters subject to judicial notice may support a motion for summary judgment. (Code Civ. Proc., § 437c, subd. (b)(1).) SOLICH requests judicial notice of the court's May 8, 2025 order granting her discovery motions and also of her relevant requests for admissions submitted to Plaintiff. The court takes judicial notice of these records of a court of the state under Evidence Code section 452, subdivision (d). The court additionally takes judicial notice of its own files which do not include relief or a request for relief pursuant to Code of Civil Procedure section 2033.300.

Legal Standard. A defendant may move for summary judgment on the basis that the plaintiff cannot establish an element of his cause of action. (Code Civ. Proc., § 437c, subd. (o)(1).) A summary judgment motion is properly granted where the evidence in support of the moving party would be sufficient to sustain a judgment in his favor and his opponent does not show facts sufficient to present a triable issue of fact. (*Parker v. Twentieth Century-Fox Film Corp.* (1970) 3 Cal.3d 176, 181 (*Parker*).) The motion is not to be granted where any triable issue of material fact exists. (*Ibid.*) The affidavits of the moving party are strictly construed, and doubts as to the propriety of summary judgment should be resolved against granting the motion. (*Ibid.*) Reasonable inferences from the evidence must be drawn in the light most favorable to the opposing party. (*Syngenta Crop Protection, Inc. v. Helliker* (2006) 138 Cal.App.4th 1135, 1155.)

Affidavits, declarations, admissions, answers to interrogatories, depositions, and matters judicially noticed may all support a motion for summary judgment, provided they contain admissible evidence. (Code Civ. Proc., §§ 437c, subds. (b)(1), (d).) Allegations in a party's own pleadings may not satisfy deficiencies in evidence. (Code Civ. Proc., § 437c, subd. (p).) Allegations in an opposing party's pleadings may be considered evidence, however. (*Parker, supra*, 3 Cal.3d at p. 181.) Additionally, a defendant does not meet its burden of showing a plaintiff cannot establish an element merely by pointing out the absence of evidence; the defendant must show that the plaintiff both does not possess and cannot reasonably obtain evidence. (*Zipusch v. LA Workout, Inc.* (2007) 155 Cal.App.4th 1281, 1286-1287.)

Negligence. The elements of a negligence claim are duty, breach, and causation of damages. (*Moses v. Roger-McKeeever* (2023) 91 Cal.App.5th 172, 178-179.) Plaintiff is deemed to have admitted that he has no evidence SOLICH was negligent. (SOLICH RJN #1-2 [request #6].) He admitted that SOLICH's vehicle came to a complete stop without striking his vehicle and was only pushed into his vehicle because of Defendant LUSBIN EFRAN RODRIGUEZ's vehicle striking SOLICH's vehicle. (*Ibid.* [requests #2-4].) This suffices to meet SOLICH's burden on summary judgment of negating breach and causation because it establishes that she did not breach a duty of care and she did not cause Plaintiff's damages in that SOLICH fully stopped her vehicle and only contacted Plaintiff's vehicle after being pushed by another. Deemed admissions are not merely procedural items. They are considered conclusively established against the party deemed to have made the admission. (Code Civ. Proc., § 2033.410; see also *Lattimore v. Dickey* (2015) 239 Cal.App.4th 959, 971; *People v. \$2709 United States Currency* (2014) 2321 Cal.App.4th 1278, 1285-1286.)

Conclusion. SOLICH's motion for summary judgment is granted.

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